



Appeal Decision

Site visit made on 13 July 2026

by **S Harrington MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 17 August 2026

Appeal Ref: 6006617

Springbank, Beech Avenue, Exeter, Devon EX4 6HE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Brahm Norwich against the decision of Exeter City Council.
 - The application Ref is 25/0383/FUL.
 - The development proposed is a single storey dwelling.
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for costs was made by Mr Norwich against Exeter City Council. This application is the subject of a separate decision.

Background and Main Issues

3. The application form and accompanying evidence show that the proposal is intended to be a self-build dwelling, which would render it exempt from otherwise mandatory biodiversity net gain (BNG) requirements. Whilst this matter was not a reason for refusal on the Council's decision notice, the appellant has been afforded the opportunity to comment on the matter and submit further information during the appeal process. I am therefore content that the appellant has not been prejudiced by me including it as a main issue in my decision.
4. The main issues are therefore:
 - the effect of the proposal on biodiversity with particular regard to BNG.
 - the effect of the proposal on the character and appearance of the area, with particular regard to the Pennsylvania Conservation Area (CA); and
 - the effect of the proposal on the Exe Estuary Special Protection Area (SPA).

Reasons

Biodiversity Net Gain

5. BNG is a mandatory requirement of Schedule 7A of the Town and Country Planning Act 1990 (TCPA) (as inserted by Schedule 14 of the Environment Act 2021). However, certain planning permissions including for self-build and custom build development are exempt from the BNG requirement.

6. No planning obligation under S106 of the TCPA has been submitted in relation to securing the proposed dwelling as self-build, although the appellant has suggested a planning condition and has referred to conditions used by other Council's and a Planning Inspector within a differing appeal decision¹.
7. However, a condition requiring occupation by the person who built the dwelling for 3 years would not be enforceable and if the owner sells or leaves the property before the timeframe for occupation is complete, the house would no longer have permission to exist. Therefore, such a condition would not pass the tests of conditions as outlined in the National Planning Policy Framework (Framework) and Planning Practice Guidance and cannot be attached.
8. Consequently, I do not have any mechanism before me that ensures that the proposed dwelling would indeed be constructed and occupied as a self-build dwelling. As such, based on the submissions in this case, the appeal scheme would not ensure that this property would be self-build. Therefore, the BNG exemption would not apply in these circumstances, and the development would be subject to the statutory BNG condition.
9. The minimum information required by Article 7(1A) of the Town and Country Planning (Development Management Procedure) (England) Order 2015 is not before me. Whilst a BNG statement and Ecological Constraints Report is before me, I do not have a completed biodiversity metric calculation tool or tools. Consequently, I do not have sufficient information to conclude that appropriate BNG could be secured and there is insufficient information to conclude that the BNG objective would be met and the BNG condition is capable of being successfully discharged.
10. The Biodiversity Gain (Town & Country Planning) (Amendments and Transitional Provisions) (England) Regulations 2026 (The Regulations) introduces a new exemption to any development on a site no larger than 0.2 hectares where the development would not affect onsite priority habitat. Whilst the appeal site is below 0.2 hectares in size, The Regulations are clear that this exemption only applies to planning applications received on or after the 6 August 2026. As such, this exemption does not apply to the proposal before me.
11. Consequently, there is insufficient information before me to conclude that the proposal would have an acceptable effect on biodiversity with particular regard to BNG, or that it would be in accordance with Schedule 7A of the TCPA, as set out above.

Character and appearance

12. The appeal site is an area of garden associated with Springbank and within the CA. The wider area contains low density built form of a traditional appearance, featuring both large dwellings within large grounds, and smaller dwellings within smaller gardens. The nearby Pennsylvania Park, as well as mature trees and gardens provide the area with a pleasant verdant character.
13. The Pennsylvania Conservation Area Appraisal and Management Plan 2007 (AAMP) outlines the contributory features of the CA. These include an early 19th century high class residential development; one of the finest Regency terraces in

¹ APP/P4605/W/24/3355180

the South West; Important mature treescape that makes a significant contribution to the character and appearance of the area; Retention of rural character; Variety of boundary walls and railings; and an historically important private park.

14. Having regard to these features, I find that the significance of the CA as a whole is derived, in part, from period properties and architecture, and its association with Pennsylvania Park and overall verdant character. Although not as prominent within the CA as other mature trees, larger trees at the appeal site (including three which are subject to Tree Preservation Orders (TPO)) do contribute to the surrounding verdant character, and as such the appeal site provides a modest positive contribution to the significance of the CA.
15. The proposal would introduce a single storey dwelling onto the appeal site, which due to its low height and mono pitch roof would sit comfortably within the natural topography and appear visually recessive on the hillside. Due to the roof form and large areas of glazing the proposal would have a somewhat contemporary appearance.
16. However, it's external material palette references that of the nearby properties and the high-quality design results in a building which is of appropriate scale and visual massing and would sit comfortably with surrounding period architecture. Moreover, in combination with its positioning within the appeal site, which results in the building being largely screened from public views by topography and mature planting, the proposal would assimilate well into the area and CA.
17. Nevertheless, the proposal would require the removal of three trees and crown reduce another. The appellants Arboricultural Impact Assessment² (AIA) outlines that the three trees for removal are 'C' category, that being trees of low quality with an estimated remaining life expectancy of at least 10 years, or young trees with a stem diameter below 150 mm. The AIA states these trees to be 'early mature' and I observed that due to their size and position within the appeal site, have a neutral effect on the character or appearance of the CA.
18. The AIA also demonstrates that the footprint of the proposed dwelling would be outside of any root protection area (RPA). However, the proposed parking and turning area would be over the RPA of a TPO tree (Tree 07) which the AIA classifies as a 'B' category, that being trees of moderate quality with an estimated remaining life expectancy of at least 20 years. This accords with my observations of the tree. Whilst due to its size and location this tree positively contributes to the character and appearance of the CA and wider area, the AIA includes a detailed methodology to achieve the construction of the parking area without any adverse effects to the tree.
19. Given the conclusions of the AIA, I see no reason why, subject to the imposition of an appropriate planning condition, the proposal could not be constructed in a manner that would protect the root areas of the TPO trees, or indeed other retained nearby trees and the positive effect they have to the character and appearance of the area. As such, the proposal would have a neutral effect on the significance of the CA.
20. Both the appellant's 'Daylight/shading analysis' and the AIA illustrate a shading arc formed by the retained trees. The trees would shade differing parts of the

² Doug Pratt Tree Consultancy Ref: 2515/AIA Rev B

proposed dwelling throughout the day. However, due to the quantum of glazing and spatial relationship of the dwelling within the appeal site, as well as outdoor garden space, the retention of the trees would still allow sufficient amount of daylight and outlook so as to not significantly affect future occupiers living conditions. As such, the proposal is unlikely to result in significant additional pressure for tree works which could diminish the contribution of the trees to the character and appearance of the area.

21. Consequently, I conclude that the proposal would not have a harmful effect on the character and appearance of the area, with particular regard to the CA. The proposal would accord with policies DG1 and C1 of the Exeter Local Plan First Review 2025 (LP). These policies seek, amongst other things, to promote good design in all development proposals and ensure development within conservation areas pay special attention to preserving or enhancing the character or appearance of the conservation area.

SPA

22. The appeal site is within the zone of influence of the SPA. The SPA is noted for the following qualifying features: Slavonian grebe (Non-breeding); Dark-bellied brent goose (Non-breeding); Eurasian oystercatcher (Non-breeding); Pied avocet (Non-breeding); Grey plover (Non-breeding); Dunlin (Non-breeding); Black-tailed godwit (Non-breeding); and the overwintering assemblage of over 20,000 migratory waterfowl.
23. The SPA's conservation objectives seek to ensure their integrity is maintained or restored as appropriate, with the SPA and Ramsar site contributing to the aims of the Wild Birds Directive.
24. Human presence and activity associated with the Exe Estuary can lead to physiological impacts, such as increased stress, the redistribution of birds, the reduced intake rate of food as a response to disturbance, and increased energy expenditure as birds react to disturbance. The South-east Devon European Site Mitigation Strategy (SMS) advises that such disturbance can be considered similar to habitat loss, and where significant effects cannot be ruled out or avoided, measures to mitigate for any potential impact are required.
25. The proposal would result in the permanent increase of persons residing at the site. This increase could have a significant effect on the SPA and interests of the protected site because persons residing at the appeal site could access the protected areas for recreational purposes. On this basis, either alone or in combination with other plans and projects, the proposal would be likely to have a significant effect on the integrity of the SPA and its relative features.
26. The SMS sets out detailed mitigation measures and areas within which mitigation would be required where residential development is clearly linked to recreational use. It states that the effects of development can be mitigated by way of a financial contribution towards mitigation measures – ranging from on-site management, education and enforcement to the creation of alternative recreation space.
27. A Unilateral Undertaking under S106 of the Town & Country Planning Act 1990 (as amended) secures a Habitat Mitigation Contribution in accordance with the SMS.

28. As the competent authority following appropriate assessment, I am satisfied that with the proposed mitigation, the development does not have an adverse effect on the integrity of the SPA.
29. On this basis the proposal would not have a significant effect on the SPA and would accord with objective 8 of the Exeter Core Strategy 2012 and LP Policy LS2. These seek, amongst other things to ensure development would not harm the integrity or conflict with the conservation objectives of the SPA.

Planning Balance and Conclusion

30. The Council are unable to demonstrate a five-year housing land supply of deliverable sites, with the appellant stating, and not disputed by the Council, that it has a 4.32 year supply.
31. I have found that the proposal would accord with the development plan policies cited by the Council within their reasons for refusal, and on the basis of the policies provided to me, the development plan as a whole. However, I have also found that there is no robust mechanism before me to secure the proposal as a unit of self-build housing, and therefore I cannot afford this any weight. Nevertheless, benefits of the proposal include providing one new dwelling in an area close to services and facilities where there is a shortfall in the delivery of housing, along with the associated social and economic benefits from the construction and future occupation of the proposal.
32. As such, the proposal would direct development to a sustainable location and align with the objectives of the Framework which seek to significantly boost housing supply and support the economy. Nevertheless, taking into account the small scale of the development for a single dwelling, this only results in modest benefits.
33. However, important biodiversity requirements have not been shown to have been met. Whilst a future planning application in relation to a similar development may now benefit from an exemption from the BNG requirements, the dates of implementation of the exemption in relation to submission of applications is clearly and laid out within legislation, and therefore I afford modest weight to the potential of any future application to be exempt.
34. It has not been demonstrated that the proposal would have an acceptable effect on biodiversity with particular regard to BNG, or that it would be in accordance with Schedule 7A of the TCPA. This is a material consideration which I afford great weight.
35. Even taking into account the extent of the housing undersupply, this important adverse effect would significantly and demonstrably outweigh the modest benefits set out above when assessed against the Framework taken as a whole, even with particular regard to key policies. Consequently, the presumption in favour of sustainable development would not apply in this case.
36. For the reasons given above, I find that although the proposal would accord with development plan as a whole, material considerations indicate that the appeal should be dismissed.

S Harrington INSPECTOR